

CITY CONTRACT NO. _____

This Agreement is entered into this _____ day of _____, 2013, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the "City," and Peak Wellness Center, Inc., Alcohol Receiving Center, whose address is 2310 East 8th Street, Cheyenne, Wyoming 82001, hereinafter referred to as the "Contractor."

W I T N E S S E T H:

WHEREAS, the City has need for certain human services in the community; and

WHEREAS, the Contractor is capable and desirous of performing said services.

NOW, THEREFORE, the parties mutually agree as follows:

1. **SCOPE OF SERVICES:** The Contractor shall, in a satisfactory and proper manner as determined by the City, perform the obligations set forth in Appendix A, attached hereto and incorporated by this reference, hereinafter referred to as the "Program."

2. **TERM:** The Contractor shall commence performance of this Agreement on the 1st day of July, 2013, and shall complete performance to the satisfaction of the City no later than the 30th day of June, 2014.

3. **FEES:** The City agrees to pay Contractor a total amount not to exceed **Eighty-Four Thousand Nine Hundred Fifty-Five Dollars (\$84,955.00)** for the services set forth in Appendix A upon acceptance of performance by the City. Payment is to be made in one lump sum on or before the 15th day of December, 2013.

Payment by the City to the Contractor for the services performed under the terms and conditions of this Agreement is contingent upon the availability of the City funds which are appropriated and allocated for payment of such obligation. The City shall notify the Contractor at the earliest possible time of any such shortage or depletion of funds.

4. **RIGHT TO TERMINATE AGREEMENT:** It is mutually agreed and understood that the City reserves the right to terminate this Agreement at any time, provided, however, that the City shall pay the Contractor on a pro rata basis for services rendered up to the time of cancellation. In the event of termination, all property and documents, data, studies and reports purchased, prepared or related to this Agreement whether completed or in progress shall

immediately become the property of the City and shall be delivered to the City within five (5) days of termination. Notwithstanding the above, the Contractor shall not be relieved of liability to the City for damages sustained by the City because of any breach of this Agreement by the Contractor, and the City may withhold any reimbursement to the Contractor for the purpose of set-off until such time as the exact amount of damages due the City from the Contractor is agreed upon or otherwise determined. In the event the Contractor fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Contractor.

5. PUBLICATION AND PUBLICITY: The Contractor may not publish results, data or findings arising from its performance of this Agreement in the absence of the prior written approval of the Human Services Advisory Council. A copy of the publication will be furnished to the City.

6. WYOMING LAWS GOVERN: The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming; and the courts of the First Judicial District, Laramie County, Wyoming shall have jurisdiction over any action arising out of this Agreement.

7. COVENANT AGAINST CONTINGENT FEES: The Contractor warrants that no person, selling agency or other organization has been employed or retained to solicit or secure this Agreement upon agreement or understanding for a commission, percentage, brokerage or contingent fee. For breach or violation of this warrant, the City shall have the right to annul this Agreement without liability or, in its discretion, to deduct from the compensation, or otherwise recover, the full amount of such commission, percentage, brokerage or contingent fee.

8. INDEMNIFICATION/HOLD HARMLESS: The Contractor agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) Contractor's breach of any term or provision of this Agreement, or (2) any negligent or wrongful act, error or omission by Contractor, or its employees or subcontractors in the performance of this Agreement.

Contractor acknowledges that it may incur a financial obligation to the City pursuant to the terms

of this paragraph.

9. GOVERNMENTAL IMMUNITY: The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq.*

10. EEOC COMPLIANCE: All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex. The parties further assure that they will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to similarly include this clause therein.

11. EMPLOYMENT PRACTICES OF CONTRACTOR: The Contractor must comply in its employment practices with all applicable state and federal laws regulating discrimination in employment. If the Contractor or its employees or subcontractors are determined to be in violation of these requirements, this Agreement may be terminated. The Contractor shall indemnify and hold the City of Cheyenne harmless from any and all claims, demands, causes of action, damages, injuries and other liabilities which may be asserted against or imposed upon the City of Cheyenne as a result of the employment practices of Contractor or its assigns.

12. POLITICAL AND RELIGIOUS PROMOTION PROHIBITED: None of the funds, materials, property or services contributed by the City or the Contractor shall be used in the performance of this Agreement for the promotion of (i) any partisan political activity, or to further the election or defeat of any candidate for public office or (ii) religious worship, instruction or proselytization.

13. COMPLIANCE WITH APPLICABLE LAW: The Contractor agrees to comply with all applicable local, state and federal laws, ordinances, rules and regulations in the performance of this Program. Failure to do so will give the City the right to immediately terminate this Agreement.

14. RECORDS AND ACCOUNTS: The Contractor shall maintain fiscal records and accounts as required by Wyoming law and as required by the City to assure proper accounting for Program funds. These records shall be made available for audit purposes to the City and will

be retained by the Contractor for three years after the expiration of the Agreement. The Contractor shall file with the City Treasurer an audited financial statement as completed each year with a copy to the Cheyenne City Council.

15. REPORTS AND INSPECTIONS: The Contractor shall produce financial, program progress and other reports as may be requested by the City, and will permit on-site inspections upon request by the City.

16. INSURANCE: The Contractor must provide proof of the following insurance coverages:

a. Commercial General Liability Insurance. For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000.00 per occurrence, \$2,000,000.00 aggregate, for the entire term of this Agreement.

b. Business Automobile Insurance. Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000.00 per accident for the entire term of this Agreement.

c. Workers' Compensation. Workers' compensation coverage shall be in effect, as required by Wyoming law, for all employees or agents providing services under this Agreement. Contractor shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

d. Professional Liability Insurance. The Contractor shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Contractor's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

i. Contractor shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Contractor begins the provision of services under this Agreement; and

ii. In the event the Contractor's services extend into a future policy period, the Contractor shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Contractor will provide services under this Agreement; and

iii. Contractor shall maintain said "claims made" coverage for a period of five (5) years following the last date that Contractor has provided services under this Agreement; and

iv. In the event the Contractor or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (i), (ii), or (iii) of this paragraph, the Contractor shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Contractor has provided services under this Agreement.

e. Additional Insurance Information. The Contractor shall name the City of Cheyenne as an additional insured by endorsement on its insurance policies, with the exception of workers' compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Contractor shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Contractor to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Contractor shall provide the City with copies of insurance policies

and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Contractor's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

17. INDEPENDENT CONTRACTOR. The Contractor shall function as an independent contractor for the purposes of this Agreement. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Contractor or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on behalf of the City.

18. CHANGES, MODIFICATION, REVISIONS AND AMENDMENTS: This Agreement may not be modified, altered or amended except by written instrument, executed and signed by all parties to this Agreement.

19. TAXES: The Contractor agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by in connection with its operations under this Agreement.

20. SUCCESSORS AND ASSIGNS: It is mutually agreed and understood that all of the covenants and agreements contained herein shall extend to and be obligatory on the successors and assigns of the respective parties.

21. ASSIGNMENT: Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the Contractor from subcontracting to a qualified subcontractor.

22. CONFLICT OF INTEREST: In entering this Agreement, the Contractor covenants that it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the Contractor covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The Contractor certifies that no one who has or will have any financial interest under this contract is an officer or

employee of the City.

23. WAIVER: The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach thereof.

24. THIRD PARTY RIGHTS: The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

25. DEFAULT: Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

26. EMBODIMENT OF AGREEMENT: This Agreement contains the entire understanding of the parties, and there are no other terms or conditions, oral or written, concerning or controlling this matter. Time is of the essence hereof.

IN WITNESS WHEREOF, the parties hereto have executed this instrument on the day and year first above written.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk

PEAK WELLNESS CENTER, INC.,

BY:

APPENDIX “A”

PEAK WELLNESS CENTER, INC.
ALCOHOL RECEIVING CENTER

Mission: A private, not for profit system of care that provides accessible, affordable and effective mental health and substance abuse services to the residents of Albany, Goshen, Laramie and Platte counties in Wyoming.

Program Purpose: To provide social, non-medical alcohol and drug detoxification services for the well-being and safety of those in need and for the community in general.